



CHAPTER lxxi.

An Act to extend the time limited by the Heywood and Middleton Water Board Act 1901 for the construction of waterworks to confer further powers upon the Heywood and Middleton Water Board with respect to their water undertaking and for other purposes. [26th July 1907.] A.D. 1907.

WHEREAS by the Heywood Waterworks (Transfer) Act 1898 the water undertaking of the mayor aldermen and burgesses of the borough of Heywood (acquired by them from the Heywood Waterworks Company) was transferred to the Heywood and Middleton Water Board (in this Act called "the Board") consisting of representatives of the boroughs of Heywood and Middleton in the county of Lancaster :

And whereas the works authorised by the Heywood Waterworks Act 1877 comprised a storage reservoir (enlarged under the powers of the Heywood and Middleton Water Board Act 1901 and called "the Ashworth Moor Enlarged Reservoir") and other works :

And whereas unforeseen difficulties have arisen in the construction of the Ashworth Moor Enlarged Reservoir which have necessitated the carrying of the trenches of the reservoir to a much greater depth than was anticipated and it is therefore expedient to empower the Board to borrow further money for the completion of the said reservoir and to make further provision with regard to the water undertaking of the Board :

And whereas it is expedient to amend the provisions of the Heywood and Middleton Water Board Act 1901 with respect to the taking of lands by agreement and to empower the Board to

A.D. 1907. — purchase additional lands within and without the drainage area of their waterworks for the purposes of their water undertaking :

And whereas in consequence of various untoward circumstances the water undertaking of the Board has proved very burdensome to the ratepayers of the boroughs of Heywood and Middleton and it is expedient in order to relieve the said ratepayers to authorise a further postponement of payments to the sinking fund :

And whereas out of the sum of Heywood Corporation stock created by the Heywood Corporation and now unredeemed and outstanding one hundred and fifty-two thousand six hundred and twelve pounds part of the same stock was issued and is now owing on account of the water undertaking of the Heywood Corporation by the said Act transferred to the Board and it is expedient that from the thirty-first day of March one thousand nine hundred and seven the said sum of one hundred and fifty-two thousand six hundred and twelve pounds stock should be taken over by the Board :

And whereas it has been arranged that the said sum of one hundred and fifty-two thousand six hundred and twelve pounds stock allocated to the former water undertaking of the Heywood Corporation as aforesaid shall be that part of Heywood Corporation redeemable stock which is numbered as set forth in the schedule to this Act in the corporation stock register of the Heywood Corporation (hereinafter referred to as "the waterworks stock") and the respective holders of such stock who are all sui juris have consented to the transfer of the same to the Board :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Board for the purposes hereinafter mentioned and such estimates are as follows :—

For the purchase of land and for the excess of	£
expenditure required for the completion of the	
Ashworth Moor Enlarged Reservoir and other	
works authorised by the Heywood Waterworks	
Act 1877 - - - - -	103,000
For the construction of filter beds - - -	5,000

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years : A.D. 1907.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Heywood and Middleton Water Board Act 1907 and the Heywood Waterworks (Transfer) Act 1898 the Heywood and Middleton Water Board Act 1901 and this Act may be cited together as the Heywood and Middleton Water Board Acts 1898 to 1907. Short title
and citation
of Acts.

2. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpreta-
tion.

“The Board” means the Heywood and Middleton Water Board ;

“The Heywood Corporation” means the mayor aldermen and burgesses of the borough of Heywood ;

“The Act of 1877” means the unrepealed portions of the Heywood Waterworks Act 1877 “the Act of 1883” means the Heywood Corporation Act 1883 “the Act of 1889” means the Heywood Corporation Act 1889 “the Act of 1898” means the Heywood Waterworks (Transfer) Act 1898 and “the Act of 1901” means the Heywood and Middleton Water Board Act 1901.

3. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act namely:— Incorporation of Acts

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement).

4. Notwithstanding anything contained in the Act of 1901 the Board may for the purposes of their water undertaking by agreement purchase take on lease acquire and hold in addition Power to
purchase
additional
lands by
agreement.

A.D. 1907. to the quantity of land which they are authorised to hold for the said purposes by section 9 (Power to purchase additional lands by agreement) of the Act of 1901 any lands (including the mines and minerals thereunder) and any other estates and interests in such lands of what kind soever not exceeding ten acres Provided that the Board shall not sink any wells or intercept any water otherwise than by works expressly authorised by Parliament or authorised by any statutory provision or create or permit the creation or continuance of any nuisance on any such lands or use such lands for any building except offices or dwellings for persons in their employ or such buildings or works as may be incident to or connected with their waterworks.

Discharge of water into streams.

5.—(1) The Board may from time to time discharge water from any of the waterworks authorised by the Act of 1877 the Act of 1889 the Act of 1898 and the Act of 1901 into the Old House Brook or any tributary thereof.

(2) In the exercise of the power conferred by this section the Board shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

Board not bound to supply several houses by one pipe.

6. The Board shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Notice of discontinuance.

7. A notice to the Board from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Board.

Power to sell or let meters.

8.—(1) The Board may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

(2) The provisions of section 14 (Power to let meters on hire) of the Waterworks Clauses Act 1863 shall extend to authorise the Board to let for hire any water fittings to any person supplied by them with water and shall apply to the water fittings so let for hire.

9.—(1) The Board may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):— A.D. 1907.
Power to borrow.

- (A) For the purchase of land and for the excess of expenditure required for the completion of the Ashworth Moor Enlarged Reservoir and other works authorised by the Act of 1877 and the Act of 1901 the sum of one hundred and three thousand pounds :
- (B) For constructing filter beds the sum of five thousand pounds :
- (C) For paying the costs and expenses of this Act as hereinafter provided the sum requisite for that purpose :

And the Board may with the consent of the Local Government Board borrow such further moneys as may be necessary for any of the purposes of this Act.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Board may mortgage or charge the revenue of their water undertaking and all rates and moneys which they are authorised to levy raise or collect or caused to be levied raised or collected within the boroughs of Heywood and Middleton or either of them.

10. The Board shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as “the prescribed periods”) following (that is to say):— Periods for repayment of moneys borrowed.

As to moneys borrowed for the purposes (A) mentioned in the section of this Act the marginal note whereof is “Power to borrow” within sixty years from the date or dates of borrowing the same ;

As to moneys borrowed for the purpose (B) in the said section mentioned within thirty years from the date or dates of borrowing the same ;

As to moneys borrowed for the purpose (C) in the said section mentioned within five years from the passing of this Act ;

As to moneys borrowed with the consent of the Local Government Board within such respective periods as that Board may sanction.

A.D. 1907.

Power to
re-borrow.

11.—(1) The Board shall except as hereinafter provided have power to re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under the Act of 1898 the Act of 1901 or this Act which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Board within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow.

(2) Provided that the Board shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose.

(3) Provided also that any moneys re-borrowed shall be deemed to form the same loan as the moneys for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

(4) Section 48 (Power to re-borrow) of the Act of 1898 and so much of section 37 (Incorporation of sections of Act of 1898) of the Act of 1901 as incorporates that section are hereby repealed.

Incorporation of sections of Act of 1898.

12. The following sections of the Act of 1898 shall with the necessary modifications extend and apply to and with respect to moneys borrowed under this Act:—

Section 40 Mode of raising money ;

Section 41 Provisions of Public Health Act as to mortgages to apply ;

Section 43 Mode of payment off of money borrowed ;

Section 44 Sinking fund ;

Section 45 Protection of lender from inquiry ;

Section 46 Board not to regard trusts ;

Section 47 Appointment of receiver ;

Section 49 Annual return to Local Government Board ;

Section 50 Application of money borrowed ;

Section 51 Proceeds of sale of surplus lands ;

Section 54 Board may issue stock ;

Section 56 Inquiries by Local Government Board :

Provided that it shall not be obligatory upon the Board to commence the repayment (by sinking fund or otherwise) of any money to be borrowed under this Act for waterworks purposes (except money borrowed with the consent of the Local Government Board) until the completion of the Ashworth Moor Enlarged Reservoir or until the expiration of seven years from the passing of this Act whichever shall first happen. A.D. 1907.

13. The waterworks stock shall as from the thirty-first day of March one thousand nine hundred and seven be taken over by and transferred to the Board together with all liabilities of the Heywood Corporation in respect of the same and shall be charged indifferently on the revenue of the water undertaking of the Board and on all rates and moneys which the Board are authorised to levy raise or collect or cause to be levied raised or collected within the boroughs of Heywood and Middleton or either of them. As to charges on water undertaking.

14. From and after the thirty-first day of March one thousand nine hundred and seven all Heywood Corporation redeemable stock except the waterworks stock transferred to the Board under the provisions of this Act shall cease to be charged on the revenue of the water undertaking of the Board or on the rates and moneys which they are authorised to levy raise or collect or cause to be levied raised or collected within the boroughs of Heywood and Middleton or either of them. Heywood Corporation stock except waterworks stock to cease to be a charge on water undertaking.

15. From and after the thirty-first day of March one thousand nine hundred and seven the waterworks stock shall be designated as "the Heywood and Middleton Water Board Stock" and the provisions with respect to corporation stock contained in Part XVI. of the Act of 1883 as amended by Article V. of the Heywood Order confirmed by the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1888 shall (subject as in this Act provided) apply to the waterworks stock as if such provisions were herein set forth mutatis mutandis and therein the Board were substituted for the Heywood Corporation and in sections 125 and 127 thereof the words "the passing of the Act of 1898" were substituted for the words "the passing of this Act" Provided that the Board shall have no power to issue any further stock for waterworks purposes under the Act of 1883. Transferred stock.

16. All sums which should on the thirty-first day of March one thousand nine hundred and seven be standing to the credit Transfer of sums to new sinking fund.

A.D. 1907. of the loans fund established by the Heywood Corporation for the repayment of moneys borrowed for waterworks purposes or the securities in which the same are invested shall be forthwith paid or transferred by the Heywood Corporation to the Board and shall be carried by the Board to the credit of the loans fund to be established by them and the provisions of the Act of 1883 amended as aforesaid with respect to the repayment of such moneys shall apply mutatis mutandis to the Board.

Provisions of this Act applied to waterworks stock.

17. The provisions of this Act with respect to the waterworks stock shall be in substitution for and satisfaction of the provisions conditions and obligations with respect thereto in the Act of 1883 and in section 23 of the Act of 1898 respectively contained.

Members of Board to cease to hold office in certain events.

18. Notwithstanding anything contained in subsection (1) of section 8 of the Act of 1898 (Term of office and rotation of members) a member of the Board who has ceased to be or is not a member of the council of the borough electing him shall cease to be a member of the Board upon receiving written notice requiring him to resign his office from the town clerk of such borough and notice shall only be given in pursuance of a resolution of such council. A copy of every such notice shall at the same time be sent to the clerk to the Board.

Alteration of date of election of members of Board.

19.—(1) Notwithstanding anything contained in the Act of 1898 from and after the passing of this Act the annual meeting of the Board shall be held on the third Wednesday in the month of February and rule 1 of the Second Schedule to the Act of 1898 shall be read and have effect accordingly.

(2) The two members elected by the council of the borough of Heywood and the two members elected by the council of the borough of Middleton who would in the ordinary course go out of office on the day previous to the annual meeting which would be held in the month of October one thousand nine hundred and seven shall continue in office until the day previous to the annual meeting to be held in the month of February one thousand nine hundred and eight and shall go out of office on such last mentioned day.

(3) Subsection (4) of section 8 (Term of office and rotation of members) of the Act of 1898 shall be read and have effect as if the word "January" were inserted therein instead of the word "September."

20. The costs charges and expenses preliminary to and of A.D. 1907.
and incidental to preparing and obtaining this Act as taxed by Costs of Act.
the taxing officer of the House of Lords or of the House of
Commons shall be paid by the Board and may be paid out of
the revenue of their water undertaking or out of moneys borrowed
under the powers of this Act.

The SCHEDULE referred to in the foregoing Act.

LIST OF HOLDERS OF £152,612 HEYWOOD CORPORATION STOCK
ALLOCATED TO THE WATER UNDERTAKING.

No. in Register.	Name.	Amount.
		£
4	Frederick Blay - - - - -	80
5	Thomas Carter - - - - -	270
12	Edward Cunliffe - - - - -	220
19	Oliver Ormrod Openshaw - - - - -	5,000
23	William Henry Downham - - - - -	180
25	Thomas Battersby and others - - - - -	5,390
29	Ellen Kenyon - - - - -	250
31	Thomas Chadwick - - - - -	190
33	Mary Cornall - - - - -	240
46	Mary Charlesworth - - - - -	340
47	Ellen Craik and others - - - - -	4,400
48	Mary Hoyle - - - - -	800
50	Fanny Openshaw - - - - -	400
52	Alice Ann Hamer - - - - -	1,070
53	Rachel Kay - - - - -	310
55	Rachel Fitton - - - - -	190
65	Hannah Marsh - - - - -	240
66	Walter Whatmough - - - - -	130
68	George Williamson - - - - -	660
72	Robert Riley - - - - -	170
73	Mary Riley - - - - -	170
75	Sarah Barratt - - - - -	1,230
76	Alice Ellen Pilkington - - - - -	310
81	Mark Walsh - - - - -	200
84	James Henry Maden - - - - -	330
86	John Turner - - - - -	840
88	Rachel Howarth - - - - -	220
91	Elizabeth Bardsley - - - - -	1,340
94	Carolina Ormerod - - - - -	250
95	Sarah Jane Holland and others - - - - -	1,000
96	Daniel Higham and others - - - - -	200
100	Elizabeth Ann Shore - - - - -	1,340
102	Emma Hall and another - - - - -	1,810
105	Cervetus Yates and another - - - - -	620
106	Elizabeth Hamer - - - - -	950

[Ch. lxxi.] *Heywood and Middleton Water Board* [7 EDW. 7.]
Act, 1907.

A.D. 1907.

No. in Register.	Name.	Amount.
		£
114	Elizabeth Jane Howarth - - - - -	330
116	Margaret Killon - - - - -	220
118	Francis Newbold Pickford - - - - -	1,000
120	James William Kenyon - - - - -	820
124	Edward Whatmough - - - - -	210
130	Emily Coupe - - - - -	620
132	Robert Howarth - - - - -	750
134	Nanna Meadowcroft and others - - - - -	500
135	Annie Kay - - - - -	1,070
136	Betsy Kay - - - - -	1,070
137	Hannah Elizabeth Watkin - - - - -	40
142	John George Dean - - - - -	550
149	John Ralph Greenhow Grundy - - - - -	340
150	Cuthbert Cartwright Grundy - - - - -	340
151	Jane Bertha Foster - - - - -	340
154	Robert Julian Hall - - - - -	60
156	Clara Mary Lucas - - - - -	720
157	Mary J Bashall Filleul - - - - -	670
159	William Barritt - - - - -	570
161	John Thomas Dawson for Silvia Wild - - - - -	680
163	Sarah Bardsley - - - - -	1,070
164	Robert Julian Hall and another - - - - -	270
167	Elizabeth Ann Maxwell - - - - -	130
171	Elizabeth Eddleston - - - - -	540
174	Mary Hoyle - - - - -	370
176	Henry Stead Bentley - - - - -	1,200
179	James Bennett - - - - -	500
180	Charles Coupe - - - - -	1,000
182	John Bennett - - - - -	100
188	Mary Riley - - - - -	100
192	Jane Collinge and another - - - - -	150
193	Edmund Aspinall - - - - -	500
195	The Pearl Life Assurance Co. Ltd. - - - - -	10,000
199	Hannah Holden - - - - -	300
211	Hannah Dean - - - - -	1,070
217	Robert Shaw and others - - - - -	280
219	Florence Gertrude Cornall - - - - -	270
220	Betsy Crompton and others - - - - -	750
221	Edward Keen - - - - -	100
228	Florence Gertrude Cornall - - - - -	110
229	Mary Cornall - - - - -	50
231	John Keen - - - - -	200
233	Basil Dimmock and another - - - - -	650
235	Alice Blakeley - - - - -	300
237	James Farrow and others - - - - -	200
240	William Young and another - - - - -	2,900
244	Annie Barbara Dutton - - - - -	390
254	Edward Cunliffe - - - - -	270
255	Ellen Shepherd and others - - - - -	1,410
257	Alice Ellen Pilkington - - - - -	130
260	Lucy Mary Jackson and another - - - - -	250
261	William Henry Downham - - - - -	60
263	Francis George Howarth - - - - -	1,462
264	James Henry Howarth and another - - - - -	3,478
267	Ellen Shepherd and another - - - - -	370
268	Ditto ditto - - - - -	280

[7 EDW. 7.] *Heywood and Middleton Water Board* [Ch. lxxi.]
Act, 1907.

No. in Register.	Name.	Amount.	A.D. 1907.
		£	
271	Elizabeth Barbara Maxwell and another - - -	300	
272	Mary Ann Hoyle - - -	190	
273	Ditto - - -	100	
275	Emma Norris - - -	350	
276	Emma Norris - - -	50	
277	Mary Charlesworth - - -	130	
278	Fanny Openshaw - - -	130	
280	Fanny Bridge - - -	130	
281	Roger Bridge - - -	130	
282	Ada Bridge - - -	130	
284	Joseph Chadwick and another - - -	650	
287	Elizabeth Street - - -	150	
288	Alice Higginbottom - - -	130	
292	Mary Riley - - -	100	
301	Elizabeth Whittaker - - -	440	
307	Squire Barlow - - -	50	
309	James Hardman - - -	1,000	
310	Jane Madders - - -	150	
311	John Joseph Brown and others - - -	247	
312	Elizabeth Ann Hardman - - -	320	
315	Fanny Geldard - - -	1,170	
316	Ellen Rothwell and others - - -	27,980	
317	John Openshaw - - -	140	
321	Selina Shaw - - -	100	
325	Tom Livsey Peers - - -	240	
326	John Hatton Wardleworth - - -	1,140	
330	Mary Ann Hoyle - - -	210	
332	Sophia Horsfield - - -	1,050	
345	William Henry Kay and others - - -	590	
346	Standen Paine - - -	1,600	
351	Elizabeth Heywood Rigby - - -	100	
352	Mary Elizabeth Jones - - -	2,100	
354	Mary Thornley and others - - -	1,600	
357	Mary Sharp - - -	660	
358	Samuel Roberts - - -	620	
360	Mary Jane Newton - - -	300	
361	Jennie Mabel Higginbottom - - -	200	
362	Samuel Byrom and others - - -	750	
364	William Mellalieu Harrison - - -	500	
366	William Mellalieu Inglescent and another - - -	1,500	
367	Maggie Ann Pickup - - -	100	
370	John Edgar Pilkington and others - - -	340	
371	Ditto ditto - - -	1,340	
375	Joseph Pilkington - - -	2,090	
377	Maggie Ann Pickup - - -	200	
378	Gertrude Charles - - -	80	
379	Albert Riley - - -	170	
380	Standen Paine - - -	1,400	
383	Mary Albrecht - - -	600	
384	John Adolph Albrecht - - -	500	
386	Humphrey Wroe Roberts - - -	300	
387	Sir Thomas Edward Milborne Swinnerton Pilkington Bart. - - -	1,170	
389	Hugh Porritt Roberts - - -	1,116	
390	Sarah Ann Edmondson and others - - -	570	
395	Standen Paine - - -	1,000	
397	Jessie Diack - - -	1,348	

[Ch. lxxi.] *Heywood and Middleton Water Board*
Act, 1907.

[7 EDW. 7.]

A.D. 1907.

No. in Register.	Name.	Amount.
		£
402	Naney Taylor	1,220
403	Annie Jackson	190
404	Lily Heywood	100
406	Hubert Coutts and others	2,953
410	Jessie Diack	490
411	Emma Kenyon	228
412	Sarah Ann Kenyon	227
415	James Henry Lord and others	1,670
417	William Mellalieu Inglescent and another	203
419	Albert Taylor	180
420	Sarah Holland	112
421	Martha Roberts and others	470
423	Margaret Killon	340
424	Alice Wormald	340
426	Eliza Briggs	600
427	James William Kenyon	360
429	Maggie Ann Pickup	200
430	Thomas Roberts	160
431	Elizabeth Howarth	220
433	James Holt	633
436	John Edward Tinsley and others	632
443	Mary Ann Turner and others	840
446	William Sellars	585
447	Arthur Sellars	585
451	Ann Unsworth	400
452	Thomas Roberts	300
455	John Edward Tinsley and others	400
456	Clara Midgley Holt and others	233
458	Samuel Jackson	1,240
459	Lionel Coningsby Rothwell	300
462	Emma Lees	100
463	Eliza Mary Horrocks and others	1,900
471	John Bromilow Holt	1,000
	Total	£ 152,612

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